

SUPERIOR COURT OF CALIFORNIA  
COUNTY OF SAN FRANCISCO  
UNIFIED FAMILY COURT

TIMOTHY WARGO,

Petitioner

VS.

CHRISTOPHER NELSON,

Respondent

) Case Number: FDI-25-802354

) Hearing Date: August 13, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER: SPOUSAL OR PARTNER SUPPORT, ATTORNEY FEES AND COSTS

**TENTATIVE RULING**

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

**A. Procedural History**

- 1) The parties are Petitioner Timothy Wargo and Respondent Christopher Nelson.
- 2) Per the Petition for Dissolution (filed 12/18/25) and Response and Request for Dissolution (filed 4/13/26), the parties married on 6/3/05 and separated on 12/17/25 for a marriage of 20 years and 6 months. There are no minor children subject to this proceeding.
- 3) On 7/13/26, Respondent filed a Request for Order seeking temporary monthly spousal support and \$7,500 in attorney's fees and costs pursuant to Family Code section 2030. Petitioner asserts he is disabled and unemployed and the \$4,719 Petitioner voluntarily pays him in support is not enough to meet his monthly expenses.
- 4) On 7/13/26, Respondent filed an Income and Expense Declaration indicating he earns \$0 in average monthly income and pays \$6,100 in average monthly expenses.
- 5) On 7/31/26, Petitioner filed a Responsive Declaration. Petitioner agrees to pay Respondent guideline temporary monthly spousal support, which Petitioner asserts he has been voluntarily paying Respondent. Petitioner requests the Court order: (a) Petitioner to pay Respondent \$4,719

1 in guideline temporary monthly spousal support in accordance with the XSpouse report attached  
2 as Exhibit 2; (b) Petitioner to contribute \$4,000 to Respondent's attorney's fees and costs; and (c)  
3 reservation of jurisdiction over Petitioner's claim for reimbursement for any overpayment of  
4 temporary support already paid (Petitioner asserts he voluntarily paid Respondent's living costs at  
5 \$6,259 per month for over six months).

6 6) On 7/31/26, Petitioner filed an Income and Expense Declaration.

7 **B. Findings and Order**

8 1) Respondent's request for guideline temporary monthly spousal support is GRANTED.

9 2) The Court finds good cause to adopt Petitioner's proposed XSpouse calculation attached as  
10 Exhibit 2 to Petitioner's Responsive Declaration filed 7/31/26 (and attached hereto).

11 3) As such, Petitioner shall pay Respondent \$4,719 in guideline temporary monthly spousal support  
12 on the 1<sup>st</sup> of every month, effective 7/13/26. The Court finds there are no arrears due and owing to  
13 Respondent as it is undisputed that Petitioner has been voluntarily paying Respondent's expenses.

14 4) The Court reserves jurisdiction over Petitioner's claim for reimbursement for any overpayment of  
15 temporary support Respondent voluntarily paid.

16 5) Respondent's request for Family Code section 2030 attorney's fees and costs is GRANTED in the  
17 amount of \$5,000.

18 6) The Court finds an award of attorney's fees and costs is appropriate here because there is a  
19 demonstrated disparity between the parties in access to funds to retain counsel and in the ability  
20 to pay for legal representation.

21 7) The Court further finds that Petitioner has or is reasonably likely to have the ability to pay \$5,000  
22 towards Respondent's legal representation while maintaining his own.

23 8) Finally, \$5,000 in attorney's fees and costs is reasonable and necessary based on the facts and  
24 equities of this case.

25 9) Petitioner shall pay this balance in full by 9/13/26.

26 10) Counsel for Petitioner shall prepare the Findings and Order After Hearing.

27 11) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within  
28 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other  
29 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule

1 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the  
2 proposed order after hearing directly to the court. Failure to submit the order after hearing within  
3 10 days may allow the other party to prepare a proposed order and submit it to the court in  
4 accordance with CA Rules of Court, Rule 5.125(d).  
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